

FEDERAL MARITIME COMMISSION

DOLLAR GENERAL LOGISTICS, LLC,

Complainant,

v.

YANG MING MARINE TRANSPORT CORP.,

Respondent.

Docket No. 25-12

ANSWER TO AMENDED COMPLAINT

Respondent, YANG MING MARINE TRANSPORT CORP., by its attorneys Mahoney & Keane, LLP, answers the Amended Complaint of Claimant upon information and belief as follows:

**AS AND FOR AN ANSWER TO “INTRODUCTION”, “THE COMPLAINANT”,
“THE RESPONDENT”, “JURISDICTION AND AUTHORITY”, and “MATTERS
COMPLAINED OF (ALLEGED FACTS)”**

1. Respondent denies the allegations contained in paragraphs “1”, “4”, “5”, “6”, “7”, “8”, “9”, “10”, “11”, “12”, “13”, “14”, “15”, “16”, “17”, “18”, “19”, “20”, “23”, “26”, “27”, “28”, “29”, “30”, “31”, “32”, “33”, “36”, “37”, “38”, “39”, “40”, “41”, “43”, “47”, “48”, “49”, “50”, “51”, “52”, “54”, “56”, “57”, “59”, “60”, “62”, “66”, “67”, “71”, “73”, “75”, “76”, “77”, “78”, “79”, “80”, “81”, “82”, “87”, “88”, “89”, “90”, “91”, “92”, “93”, “96”, “97”, “100”, “102”, “103”, “105”, “107”, “108”, “109”, “110”, “111”, “112”, “114”, “115”, “116”, “117”, “118”, “119”, “120”, “121”, “122”, “123”, “124”, “125”, “126”, “127”, “128”, “129”, “130”, “132”, “133”, “134”, “135”, “136”, “137”, “138”, “139”, “140”, “141”, “142”, “143”, “144”, “145”, “146”, “147”, “148”, “149”, “150”, “153”, “154”, “156”, “157”, “158”, “159”, “160”, “161”, “162”, , and “163” of Claimant’s Amended Complaint.

2. Respondent denies knowledge or information sufficient to form a belief as to the allegations contained in paragraphs “2”, “3”, “21”, “22”, “24”, “25”, “34”, “35”, “42”, “44”, “45”, “46”, “53”, “55”,

“58”, “61”, “63”, “64”, “65”, “68”, 69, “70”, “72”, “74”, “75”, “83”, “84”, “85”, “86”, “94”, “95”, “98”, “99”, “101”, “104”, “106”, “113”, “131”, “151”, “152”, and “164” of Claimant’s Amended Complaint.

AS AND FOR AN ANSWER TO “COUNT I”

3. Respondent repeats and reiterates its responses to the allegations contained in paragraphs “1” through “164” of Claimant’s Amended Complaint as if fully set forth herein at length in response to paragraph “165” of Claimant’s Amended Complaint.

4. Respondent denies the allegation contained in paragraph “165” of Claimant’s Amended Complaint.

AS AND FOR AN ANSWER TO “COUNT II”

5. Respondent repeats and reiterates its responses to the allegations contained in paragraphs “1” through “165” of Claimant’s Amended Complaint as if fully set forth herein at length in response to paragraph “166” of Claimant’s Amended Complaint.

6. Respondent denies the allegations contained in paragraph “168” of Claimant’s Amended Complaint.

AS AND FOR AN ANSWER TO “COUNT III”

7. Respondent repeats and reiterates its responses to the allegations contained in paragraphs “1” through “168” of Claimant’s Amended Complaint as if fully set forth herein at length in response to paragraph “169” of Claimant’s Amended Complaint.

8. Respondent denies the allegation contained in paragraph “170” of Claimant’s Amended Complaint.

AS AND FOR AN ANSWER TO “COUNT IV”

9. Respondent repeats and reiterates its responses to the allegations contained in paragraphs “1” through “170” of Claimant’s Amended Complaint as if fully set forth herein at length in response to paragraph “171” of Claimant’s Amended Complaint.

10. Respondent denies the allegation contained in paragraph “172” of Claimant’s Amended Complaint.

AS AND FOR AN ANSWER TO “COUNT V”

11. Respondent repeats and reiterates its responses to the allegations contained in paragraphs “1” through “172” of Claimant’s Amended Complaint as if fully set forth herein at length in response to paragraph “173” of Claimant’s Amended Complaint.

12. Respondent denies the allegation contained in paragraph “174” of Claimant’s Amended Complaint.

AS AND FOR AN ANSWER TO “COUNT VI”

13. Respondent repeats and reiterates its responses to the allegations contained in paragraphs “1” through “174” of Claimant’s Amended Complaint as if fully set forth herein at length in response to paragraph “175” of Claimant’s Amended Complaint.

14. Respondent denies the allegation contained in paragraph “176” of Claimant’s Amended Complaint.

AS AND FOR AN ANSWER TO “CAUSATION” AND “REPARATIONS SOUGHT”

15. Respondent denies the allegations contained in paragraphs “177”, “178”, “179”, “180”, “182”, “183”, “184”, “185”, and “186” of Claimant’s Amended Complaint.

AS AND FOR A FIRST SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

16. The Amended Complaint fails to state a claim against Respondent on which relief can be granted.

AS AND FOR A SECOND SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

17. Respondent committed no Shipping Act violation and is not liable to Claimant on the cause of action alleged in the Amended Complaint.

AS AND FOR A THIRD SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

18. If there was any loss to the Claimant as alleged in the Amended Complaint, Respondent is not liable to Claimant by reason of the provisions contained in the bill(s) of lading, contract of carriage, charter party, applicable tariffs, special contract, service contract, or dock receipt.

AS AND FOR A FOURTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

19. Any damages sustained by Claimant, as alleged in the Amended Complaint, were proximately, directly, and solely caused by the negligent acts of third persons over whom Respondent had and has no direction or control.

AS AND FOR A FIFTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

20. The claims or parts thereof are barred by the applicable statute of limitations, contractual terms between the subject parties and/or the doctrine of laches, and Answering Respondents puts Claimant to its proof of compliance with the provisions for giving of notice and the commencement of this as provided for in the aforesaid contract of carriage.

AS AND FOR A SIXTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

21. Claimant knowingly and intentionally assumed any and all risks inherent in the shipment(s) of the goods at issue by sea, which is a complete bar to recovery.

AS AND FOR A SEVENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

22. Any injuries that may have been sustained by Claimant, as alleged in the Amended Complaint, occurred as a direct result of Claimant's own negligent conduct, and not by any negligence or fault of Respondent, and, as such, Claimant is barred from recovery in this action.

AS AND FOR AN EIGHTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

23. Claimant is guilty of culpable conduct in the events giving rise to the claims now asserted in the Complaint, and Claimant's recovery, if any, must be diminished in proportion thereto.

AS AND FOR A NINTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

24. Claimant has failed to mitigate its damages.

AS AND FOR A TENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

25. Any damage as alleged in the Amended Complaint was caused by Restraint of Princes, Act of God, and/or force majeure, and Respondents is thus under no liability therefor.

AS AND FOR AN ELEVENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

26. In the event of the Carrier's failure to meet the annual Minimum Quantity Commitment, the Service Contract provided for specific remedies at odds with the claims for loss now asserted in the Complaint.

AS AND FOR A TWELFTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

27. Complainant has failed to state a claim for which relief may be granted because the Statute and Rules cited, as well as the Commission's interpretation of the purported Shipping Act violations, may not be lawfully applied to conduct which occurred before the Statute, Rule, and/or interpretation was adopted.

AS AND FOR A THIRTEENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

28. The claimed Shipping Act violations are neither customary nor continuous.

AS AND FOR A FOURTEENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

29. Respondent's practices were neither unjust nor unreasonable.

AS AND FOR A FIFTEENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

30. Respondent's practices were not the proximate cause of Claimant's alleged loss.

AS AND FOR A SIXTEENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

31. The Amended Complaint concerns breach of contract issues, rather than a Shipping Act violation.

AS AND FOR A SEVENTEENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

32. Claimant lacks standing to bring the Complaint or seek the relief requested.

AS AND FOR A EIGHTEENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

33. This Answer is made without waiver of any jurisdictional defenses or rights to arbitrate or proceed in another forum that may exist between any of the parties.

AS AND FOR A NINETEENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

34. The Amended Complaint is barred in whole or in part by waiver and/or estoppel.

AS AND FOR A TWENTIETH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

35. The Amended Complaint fails to allege the essential elements of 46 U.S.C. § 41102(c), 46 U.S.C. § 41104(a)(2), and/or 56 U.S.C. § 41104(a)(10),.

AS AND FOR A TWENTY-FIRST SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

36. At all pertinent times, Respondent acted as an agent of a disclosed principal.

**AS AND FOR A TWENTY-SECOND SEPARATE AND COMPLETE AFFIRMATIVE
DEFENSE**

37. The Federal Maritime Commission lacks subject matter jurisdiction over the Amended Complaint.

**AS AND FOR A TWENTY-THIRD SEPARATE AND COMPLETE
AFFIRMATIVE DEFENSE**

38. The Amended Complaint concerns breach of contract issues which the Complainant has breached, including without limitation claiming damages in breach of a liquidated damage agreement.

**AS AND FOR A TWENTY-FOURTH SEPARATE AND COMPLETE
AFFIRMATIVE DEFENSE**

39. The conduct which is the subject to the Amended Complaint does not constitute a practice within the meaning of 46 U.S.C. § 41102(c).

**AS AND FOR A TWENTY-FIFTH SEPARATE AND COMPLETE
AFFIRMATIVE DEFENSE**

40. Complainant lacks privity of contract with Answering Respondent.

**AS AND FOR A TWENTY-SIXTH SEPARATE AND COMPLETE
AFFIRMATIVE DEFENSE**

41. Respondent never unreasonably refused to deal or negotiate with Complainant.

**RESERVATION OF RIGHT TO SEEK ENFORCEMENT OF THE FORUM
SELECTION/ARBITRATION CLAUSE IN THE CONTRACT GOVERNING THE
CLAIMS AT ISSUE**

42. Respondent reserves the right to seek enforcement of the forum selection clause and/or choice of law clause contained in the applicable service contracts governing the claims at issue.

**RESERVATION OF RIGHTS TO AMEND THIS ANSWER AND/OR TO BRING A
THIRD-PARTY CLAIM**

43. Respondent reserves their right to amend this Answer and/or to plead any additional affirmative defenses and/or to bring a third-party claim as the facts may warrant.

RESERVATION OF RIGHTS TO SEEK A MORE DEFINITIVE STATEMENT

44. The Complainant's claims are so vague and/or ambiguous as to require particularization, and Answering Respondents reserve their right to request that they amplified, accordingly.

WHEREFORE, Respondent demands judgment dismissing the Amended Complaint and awarding to Respondent costs, fees, including reasonable attorneys' fees and disbursements of this action, as well as such other and further relief as may be deemed just and proper.

Dated: New York, New York
August 20, 2026

Respectfully submitted,

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Attorneys for Respondent
YANG MING MARINE TRANSPORT CORP.

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